

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

February 14, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Ken Esquibel (via Zoom), Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal and Jeff White. Absent: Mr. Cook and Mr. Segrave. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

PROCLAMATION – Designating February 12-19, 2022 as Entrepreneurship Week. Mayor Collins read the proclamation into the record and expressed appreciation to members of the Innovation and Entrepreneur Advisory Council who were in attendance.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Mr. Johnson and Dr. Aldrich, agenda item #25(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. Roybal, agenda item #17 was removed from the Consent Agenda. Mr. Johnson moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on January 24, 2022. Motion (per Consent Agenda) carried.

Mayor Collins opened a public hearing to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for 521 Southwest Drive (located east of Southwest Drive, south of I-80). Seth Lloyd, Planning and Development Department, provided information on the property and reviewed requirements of compliance with annexation conditions contained in state statutes. Mr. Lloyd noted the affiliated annexation and zone change ordinances are also on the agenda. Upon request, Mr. Lloyd provided examples of developments for the Mixed-Use Employment zone category. There being no further comments or input and purpose of the hearing having been met, Mayor Collins closed the public hearing.

ORDINANCE –3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the Zoning Classification from CB Community Business to MUB Mixed-Use Business Emphasis for land located northwest of the intersection of Nationway and Logan Avenue. Reporting for Public Services Committee, Dr. Rinne moved to approve on third and final reading, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present. (#4415)

ORDINANCE – 2nd READING – Amending Chapter 13.04 – Public Utilities Generally; Chapter 13.08 – Water Service System; Chapter 13.12 – Sewer System; Chapter 13.16 – Storm Sewers; and Chapter 13.20 – Wastewater Treatment & Disposal; of Title 13 – Public Services, of the Code of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. White moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present.

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) of the City of Cheyenne, Wyoming, to Table 5-1: Zoning District Uses in UDC Section 5.1.4, Districts and Uses, amending the Permissibility of Various Uses – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Unified Development Code (UDC) to create a Common Landscaping Plan and definition of Development Footprint – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Annexing to the City of Cheyenne, Wyoming, land located east of Southwest Drive, south of I-80 – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use to AG Agricultural for land located east of Southwest Drive, south of I-80 – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from CB Community Business to HI Heavy Industrial for land located north of Campstool Road, west of Progress Circle – referred to Public Services Committee. (Sponsor – Mr. Cook)

ORDINANCE –1st READING – Creating a new Section 9.08.120, Malicious Harassment Based on Race, Color, Religion, Ancestry, Sex, Sexual Orientation, Gender Identity and Expression, National Origin, or Disability, of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Code of the City of Cheyenne, Wyoming – referred to Committee of the Whole. (Sponsors – Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE –1st READING – Amending various sections of Chapter 12.20, Cemeteries, of Title 12, Streets, Sidewalks and Public Places, of the Code of the City of Cheyenne pertaining to Cemetery fees – referred to Finance Committee. (Sponsors – Mr. Segrave and Mr. White)

RESOLUTION – Authorizing up to a \$14,890,000 interfund loan from the One Percent Sales Tax Capital Projects Fund to the Special Purpose Option Sales Tax Capital Projects Fund to facilitate the construction of three fire stations, purchase fire trucks and replace the cemetery irrigation system as approved by voters on the November 2, 2021 Sixth Penny Ballot. Jim

Ridgeway advised he is in support of the project and inquired as to when construction would take place. John Kopper, Chief of the Fire Department, advised the city has a Professional Services Agreement with Plan One Architects and the projects are almost shovel ready, estimating the first fire station to be ready for construction by June. Upon inquiry, Chief Kopper provided the following information: the public areas of the fire stations will meet ADA requirements, each staff member on duty will have their own bedroom in the new fire stations and there will be 3 separate bathrooms. County Commissioner Gunner Malm expressed appreciation to Mayor Collins and the governing body for looking at this funding option, noting it is a great opportunity to save taxpayers money on the projects and to everyone who provided information to the public on the 6th Penny projects as they are instrumental in the community. Mayor Collins advised that due to inflation, the cost will continue to rise for construction of the fire stations and this approach provides for financial responsibility and accountability to the voters. Mr. Cook moved to adopt, seconded by Dr. Aldrich. Concerns and comments were made relating to the Consent Agenda process regarding public comment options. City Treasurer Robin Lockman, upon inquiry, advised this type of funding option was utilized in the past for construction of the David R. Romero Park. Ms. Lockman further advised the funds come out of 5th Penny fund, provided information on available funding in the 5th Penny fund and noted it will not affect reserves. Mayor Collins explained utilizing this funding option includes repayment to the fund with interest. Appreciation was expressed to Ms. Lockman and her team for their outstanding services and their assistance with the resolution. Motion carried. Voting “yes” – all members of the governing body present. (#6207)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant under the Staffing for Adequate Fire and Emergency Response (SAFER) Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of adding nine new firefighter positions. Motion (per Consent Agenda) carried. (#6208)

[CA] RESOLUTION – Certifying Planning Commission Action amending the Future Land Use Maps of PlanCheyenne changing the land use category from Community Business to Mixed-Use Commercial for property generally located west of Campbell Avenue, north of Nationway, and south of and adjacent to E. Lincolnway. Motion (per Consent Agenda) carried. (#6209)

[CA] RESOLUTION – Adopting the revised City of Cheyenne, Wyoming Investment Policy Statement – referred to Finance Committee. (Sponsor- Mr. White)

[CA] RESOLUTION – Authorizing the City of Cheyenne to approve and file the Wyoming Division of Victim Services Funding Application State Fiscal Year 2023 and 2024, July 1, 2022 to June 30, 2024 – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Sweetgrass, 9th Filing, a Replat of all of Lot 1, Block 4, Sweetgrass, 1st Filing situated in the N1/2 of Section 16, Township 13 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located south of East Murray Drive west and adjacent to Sweetgrass Drive) – referred to Public Services Committee. (Sponsor – Mr. Cook)

[CA] RESOLUTION – Adopting a fee schedule for Planning and Development projects – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – For Governing Body approval of a one-year Bronze Boot Sponsor relationship between Cheyenne Frontier Days and Miller/Coors for 2022 – referred to Finance Committee. (Sponsor – Mr. White)

Grant of Right-of-Way Easement on City Owned Property, per Exhibit A, between the City of Cheyenne and Cheyenne Light, Fuel and Power Company for a 150' wide right-of-way and easement for construction and maintenance of overhead power facilities. Jim Wasson, Cheyenne Light Fuel and Power Company, advised he was available for any questions. Charles Bloom, Director of Planning and Development, requested the item be postponed to allow for research on the \$10 amount affiliated with the easement. Mr. White moved to approve, seconded by Mr. Roybal. Mr. White moved to postpone to February 28, 2022, seconded by Dr. Aldrich. Mr. Wasson explained the \$10 fee is just a placeholder as compensation must be put towards the agreement. He further noted landowners in the vicinity pay \$15/linear foot. Motion to postpone carried. Voting “yes” - all members of the governing body present.

[CA] Memorandum of Understanding (MOU) between City of Cheyenne and Doran Lummis to authorize filing of platting applications(s) for City-owned lands for the purpose of access to future development. Motion (per Consent Agenda) carried. (#7472)

Professional Services Agreement between the City of Cheyenne and Thomas Szott for City Prosecutor legal counsel services (General Fund). Mr. White advised the item was reviewed under other items for the agenda at the February 7, 2022 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. White moved to adopt in an amount not to exceed \$86,400.00 annually, seconded by Mr. Johnson. Upon inquiry, Mayor Collins advised Mr. Szott will serve as the City Prosecutor and expressed the need to fill the position is immediate. City Attorney Stefanie Boster explained, upon inquiry, that the intent is for Mr. Szott to serve in a part time capacity to allow him time to work on his private practice, noting currently due to the demand of city cases, he is currently working full time. Motion carried. Voting “yes” – all members of the governing body present. (#7473)

[CA] Professional Services Agreement between the City of Cheyenne and Kyle M. Brandon for City Public Defender legal counsel services (General Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Veolia ES Technical Solutions, LLC, for the Hazardous Waste Disposal Services Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Jones Land Surveying, Inc., for professional Land Surveying Services (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Steil Surveying Services, LLC, for professional Land Surveying Services (2019-2022 1% Sales Tax) – referred to Finance Committee.

Contract Modification #1 to Contract #6957 between the City of Cheyenne and Wyoming Cattle Co., LLC adding the Mariah Pasture and extending the term of the Belvoir Ranch Grazing Lease Agreement through December 31, 2024 (Revenue to the City). Mr. White advised the recommendation of the Finance Committee was to approve in an amount not to exceed \$187,477.50, however, it has been brought to his attention that due to the nature of the contract, the amount of revenue may fluctuate annually depending on the condition of the grass and the amount of grazing. Mr. White moved to approve in the amount of \$187,477.50, seconded by Mr. Roybal. Upon inquiry, Craig LaVoy, Deputy Director of Public Works, explained the Mariah Pasture is no longer considered over-grazed and the Conservation District supports continuation of grazing. Motion carried. Voting “yes” – all members of the governing body present. (#6957)

[CA] Contract Modification #3 to Contract #6441 between the City of Cheyenne and Microsoft Corporation for the renewal to the City’s Enterprise Office 365 Online Enrollment. Motion (per Consent Agenda) carried. (#6441)

[CA] Contract Modification #1 to Contract #7118 for the Memorandum of Understanding between the City of Cheyenne and Saddle Ridge, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 7th and 9th Filings (Community Facility Fees) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #7119 for the Memorandum of Understanding between the City of Cheyenne and WJE, LLC, to outline the responsibilities for the donation of land and for the management of a multi-purpose non-motorized pedestrian and bicycle pathway, park and landscape amenities in a portion of Saddle Ridge, 8th, 9th, 10th, 11th, 12th and 13th Filings (Community Facility Fees) – referred to Finance Committee.

[CA] Consideration of Bid #S-7-22 for a Contract between the City of Cheyenne and S&S Builders, LLC, for the Street and Alley Department Tent Building Repairs and Door Repairs Project (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$105,104.69). (#7474)

[CA] Consideration of Bid #S-8-22 for a Contract between the City of Cheyenne and Front Range Roofing Systems, LLC, for the Ice and Events Center Roof Replacement Project (General Fund). Motion (per Consent Agenda) carried (accepted bid in an amount not to exceed \$181,650.00). (#7475)

[CA] Consideration to purchase between the City of Cheyenne, and KONE, Inc., for the repair of the South East Hydraulic Elevator located at the Jack Spiker Parking Garage (General Fund Reserves). Motion (per Consent Agenda) carried (in an amount not to exceed \$42,655.00).

[CA] Consideration of Bid #E-11-22 for furnishing eight (8) light poles (17th Street Lighting), for the City of Cheyenne, Engineering Department (Specific Purpose Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Announcement was made that due to the Presidents Day holiday on Monday, February 21, 2022, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, February 22, 2022 and Public Services Committee will meet at Noon on Wednesday, February 23, 2022 at the Kiwanis Community House at 4603 Lions Park Drive, Cheyenne, WY, and via electronic conference meeting.

Announcement was made of a Committee of the Whole meeting to be held Wednesday, February 23, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting.

Announcement was made of a Public Hearing to be held February 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for renewal applications for existing City liquor licenses (retail, restaurant, limited retail, resort, bar and grill licenses, microbrewery, satellite distillery, special malt beverage and winery permits) filed with the City Clerk's Office.

Announcement was made of a Public Hearing to be held February 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, for a transfer of ownership of retail liquor license application filed with the City Clerk's Office for Dillon Companies, LLC, a Kansas limited liability company d/b/a King Soopers, 3702 Dell Range Blvd., Cheyenne, Wyoming (license currently held by Avanti, Inc., d/b/a Dell Range Liquor, 3806 Dell Range Blvd. #4, Cheyenne, Wyoming)

Announcement was made of a Public Hearing to be held February 28, 2022 at 6:00 p.m. at Storey Gym (LCSD #1 Board Room), 2811 House Avenue, Cheyenne, WY, and via electronic conference meeting, to hear public comment regarding the City's intent to enter into a contract with Comea Shelter to grant a subaward from Coronavirus State and Local Fiscal Recovery Funds to be used to increase available emergency housing and temporary shelter for Cheyenne's homeless population.

Under other business:

Upon inquiry by Mayor Collins, City Clerk Kris Jones advised the following item was being introduced for the purpose of being referred to Finance Committee to be held on February 22, 2022 at the Kiwanis Community House: Contract between the City of Cheyenne and the Comea Shelter granting a subaward to be used to increase available emergency housing and temporary shelter to support Cheyenne's homeless population. (Coronavirus State and Local Fiscal Recovery Funds) Mayor Collins referred the item to the Finance Committee.

Jim Ridgeway expressed concern relating to residential sewer fees being billed for 35 day periods and how the extra days affect the budgeted bill amount. Mr. Ridgeway advised the Board of Public Utilities explained the late readings were due to staffing issues within Zone 17. Mr. Ridgeway noted he does not believe the consumer should have to pay for the inefficiencies. Mayor Collins advised water and sewer rates are established during the winter months. Mr. Ridgeway provided photos and information regarding Lions Park walking paths and advised there are issues with standing water and drainage problems which freezes and causes safety hazards. Mr. Ridgeway inquired about the Bird Scooters and requirements of the company relating to picking up abandon scooters. Mayor Collins advised users can leave them in areas around town and the company is responsible for retrieving and maintaining them. Mr. Johnson provided detailed information regarding reporting concerns involving the scooters and advised residents can find additional information on the city's and Bird Rides' websites. Mr. Johnson provided additional information relating to violations of city code involving the scooters. Mr. Ridgeway advised he believes it is a burden on citizens to contact the company. Compliance Director Eric Fountain, upon inquiry, reported an annual review will be held soon to address any issues involving the scooters. Deputy Community Recreation and Events Director Jason Sanchez, upon inquiry, provided information relating to snow removal in Lions Parks and advised he would look into drainage concerns. Mr. Ridgeway further referenced a memo provided by City Treasurer Robin Lockman on January 18th related to the resolution authorizing the interfund loan for various November 2, 2021 Sixth Penny Ballot projects and the funding of the 2019-2022 5th Penny ballot, noting overages collected that could be allotted for other needed improvements.

Dr. Aldrich advised there will be a City Council Ward III Council and Coffee event on Saturday, February 19th, from 9 am - 11 am at Dazbog Coffee (3911 E. Pershing Blvd.).

Mr. Johnson commended colleagues for their attendance and participation at the annual Boys & Girls Club Chili Cook and expressed appreciation to Triumph High Culinary Club for their 3rd Place win. Mayor Collins advised the fundraising event included a friendly competition between members of the Governing Body and the County Commissioners. Dr. Aldrich reported the event raised almost \$20k between the fundraising efforts of the Governing Body and the County Commissioners.

Mr. Roybal moved to meet in executive session pursuant to Wyoming Statute §16-4-405(a)(x), seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body present. Mayor Collins advised the executive session will be held to discuss the upcoming annual Fire Union contract and announced members would meet in executive session, not open to the public; requested the City Attorney, City Clerk, City Treasurer, Chief of Staff and Fire Chief be in attendance and stated there would be no action taken by the governing body as a result of the executive session, and that the regular City Council meeting would officially conclude at the close of the executive session. (Clerk's Note: executive session convened at 7:02 p.m.).

Following closure of the executive session, Mayor Collins reconvened the regular meeting at 7:58 p.m.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:58 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
February 25, 2022